SCHEME OF AMALGAMATION

UNDER SECTIONS 230 AND 232 OF THE COMPANIES ACT, 2013

BETWEEN

VINTAGE COFFEE PRIVATE LIMITED

(TRANSFEROR COMPANY 1)

AND

DELECTO FOODS PRIVATE LIMITED

(TRANSFEROR COMPANY 2)

AND

VINTAGE COFFEE AND BEVERAGES LIMITED

(TRANSFEREE COMPANY)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

A. PREAMBLE OF THE SCHEME

This Scheme of Amalgamation is presented under Sections 230 and 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013, and it provides for the Amalgamation of M/s. Vintage Coffee Private Limited (Transferor Company 1) and Delecto Foods Private Limited (Transferor Company 2) with M/s. Vintage Coffee and Beverages Limited (Transferee Company).

The Scheme also provides for various other matters consequential to or otherwise integrally connected with the above in the manner provided for in the Scheme.

B. DESCRIPTION OF THE COMPANIES

(1) Vintage Coffee Private Limited (Transferor Company 1) was incorporated as a Private Limited Company under the name and style of **"Vintage Coffee Private Limited"** in the State of Telangana on 15/05/2015, under the provisions of Companies Act, 2013. The Present Corporate Identity Number (CIN) of the Company is **U15500TG2015PTC098937.** The PAN of the Company is **AAFCV1173P** (hereinafter referred to **as the "Transferor Company 1").**

The Registered Office of the Transferor Company 1 is presently situated at 202, Oxford Plaza, No.9-1-129/1, S.D. Road, Hyderabad, Secunderabad-500003, Telangana, India.

The present main objects of the Transferor Company 1 are as follows:

1. To carry on the business of manufacturers, processers, exporters, planters, cultivators, buyers and sellers of Instant coffee, Instant Chicory, Roasted and Ground Coffee, Coffee Substitutes and other allied coffee products including coffee seeds, tea and in this connection to purchase, take on lease or in exchange or otherwise acquire any Manufacturing Units and lands, tea gardens, coffee gardens, plantations and property as the company may think necessary or convenient for its business and to form, open out work and carry on the business of a coffee estate or tea estate on any lands, to acquire construct and maintain factories, establishment, works, buildings and erections for all or any of the purposes aforesaid., and to acquire or make machinery, implements and articles required to be used for any such purposes, to carry on as principal or agents in any branch of agricultural, manufacturing or mercantile business for which the company's lands, coffee and tea gardens, establishments, property and employees may be conveniently applicable and to carry on all such business connected with the acquisition, hiring, leasing, planting, irrigation and cultivation of lands and the rendering merchantable and disposing of the produce thereof as are usually or may conveniently be associated with the plantation and cultivation of coffee and tea garden, and the manufacture, export and sale of coffee and tea or any other produce of the soil.

2. To carry on in India or abroad the business to manufacture, fabricate, treat, prepare, convert, ferment, finish, clean, process, produce, make, import, export, promote, buy, sell, supply, pack, repack, market, and to act as consignor, consultants, collaborator, agents, merchants, distributors, concessionaires, stockists, adatias, C & F agents or otherwise to deal in all types of confectionery items, processed foods, its by-products, ingredients, compounds and allied material such as flour, cakes, pastry, cornflakes, bread, biscuits, chocolates, sweets, fruit products, glucose, chewing gums, milk cream, ice creams, aerated or mineral waters, fruit juices, fermentation products, foods, protein foods, maize products, butter, ghee, cheese and other dairy products, pickles, jams, jellies, sausages, milk powder, condensed milk, fresh and dehydrated vegetable, cocoa, seeds, concentrates for cattle or poultry feeds their by-products, ingredients, compounds, raw materials & consumables used therefore and to do all incidental acts and things for the attainment of above objects.

3. To grow, cultivate, buy, prepare, manufacture and render marketable any seeds, fruits and vegetable produce or products of the soil, and products of agriculture or husbandry and to sell, dispose of deal in any such seeds, fruits, produce and processing of products in their prepared, manufactured or raw state and either by wholesale or retail but not limited to foods and beverages and other activities.

The authorized, issued, subscribed and paid-up capital of the Transferor Company 1 as on 31.03.2025 is as follows:

Share Capital	**Amount in Rs.**
Authorized Capital	
4,00,00,000 equity shares of Rs. 10/- each	40,00,00,000
Total	**40,00,00,000**
Issued, Subscribed and Paid up Capital	
3,86,26,201 equity shares of Rs. 10/- each	38,62,62,010
Total	**38,62,62,010**

There has been no change in the authorized share capital of the company subsequent to 31.03.2025 and till the date of resolution on 7th May, 2025 approving the scheme of Amalgamation by the Board of Directors of the Transferor Company 1.

The Transferee Company (i.e. Vintage Coffee and Beverages Limited) is the Holding Company of the Transferor Company 1 (i.e. Vintage Coffee Private Limited) holding 100% of the total paid up Equity share capital of the Transferor Company 1.

The Shareholding Pattern of the Transferor Company 1 as on 31.03.2025 are as follows:

S. No	**Category of shareholder**	**No. of shareholders**	**No. of fully paid-up equity shares held**	**% of shareholding**
A.	**Promoter**	**2**		
1	Vintage Coffee and Beverages Limited		3,86,26,200	99.999997
2	Mr. BalaKrishna Tati (nominee on behalf of Vintage Coffee and Beverages Limited)		1	0.000003
B.	**Others**	**-**	**-**	**-**
Grand Total		2	3,86,26,201	100.00

The Shareholding Pattern of the Transferor Company 1 as on 7th May, 2025 is as follows:

S. No	Category of shareholder	No. of shareholders	No. of fully paid up equity shares held	% of shareholding
A.	**Promoter**	**2**		
1	Vintage Coffee and Beverages Limited		3,86,26,200	99.999997
2	Mr. BalaKrishna Tati (nominee on behalf of Vintage Coffee and Beverages Limited)		1	0.000003
B.	**Others**	**-**	**-**	**-**
Grand Total		2	3,86,26,201	100.00

There has been no change in the capital structure of the Company subsequent to 31.03.2025 and till the date of resolution on 7th May 2025 approving the scheme of Amalgamation by the Board of Directors of the Transferor Company 1.

(2) Delecto Foods Private Limited (Transferor Company 2) was incorporated as a Private Limited Company under the name and style of **" Delecto Foods Private Limited"** in the State of Telangana on 31.08.2012, under the provisions of Companies Act, 1956. The Present Corporate Identity Number (CIN) of the Company is **U15400TG2012PTC082813.** The PAN of the Company is **AAECD3696A** (hereinafter referred to **as the "Transferor Company 2").**

The Registered Office of the Transferor Company 2 is presently situated at 202, Oxford Plaza, No.9-1-129/1, S.D. Road, Hyderabad, Secunderabad-500003, Telangana, India.

The present main objects of the Transferor Company 2 are as follows:

1. To carry on the business of Manufacturing and Exporting of all kinds of Soluble Instant Chicory and Instant Coffee products including but not limited to Foods and Beverages and other allied activities.

The authorized, issued, subscribed and paid-up capital of the Transferor Company 2 as on 31.03.2025 is as follows:

Share Capital	Amount in Rs.
Authorised Capital	
75,00,000 equity shares of Rs. 10/- each	7,50,00,000
Total	**7,50,00,000**

Issued, Subscribed and Paid up Capital	
74,83,949 equity shares of Rs. 10/- each	7,48,39,490
Total	**7,48,39,490**

There has been no change in the authorized share capital of the company subsequent to 31.03.2025 and till the date of resolution on 7th May 2025 approving the scheme of Amalgamation by the Board of Directors of the Transferor Company

The Transferee Company (i.e. Vintage Coffee and Beverages Limited) is the Holding Company of the Transferor Company 2 (i.e., Delecto Foods Private Limited) holding 100% of-the total paid up Equity share capital of the Transferor Company 2.

The Shareholding Pattern of the Transferor Company 2 as on 31.03.2025 are as follows:

S. No	**Category of shareholder**	**No. of share holders**	**No. of fully paid up equity shares held**	**% of shareholding**
A.	**Promoter**	**2**		
1	Vintage Coffee and Beverages Limited		74,83,948	99.99999
2	Mr. Bala rishna Tati (nominee on behalf of Vintage Coffee and Beverages Limited)		1	0.00001
B.	**Others**	**-**	**-**	**-**
Grand Total		2	74,83,949	100.00

The Shareholding Pattern of the Transferor Company 2 as on 7th May 2025 is as follows:

S. No	**Category of shareholder**	**No. of shareholders**	**No. of fully paid up equity shares held**	**% of shareholding**
A.	**Promoter**	**2**		
1	Vintage Coffee and Beverages Limited		74,83,948	99.99999
2	Mr. BalaKrishna Tati (nominee on behalf of Vintage Coffee and Beverages Limited)		1	0.00001
B.	**Others**	**-**	**-**	**-**
Grand Total		2	74,83,949	100.00

There has been no change in the capital structure of the Company subsequent to 31.03.2025 and till the date of resolution on 7th May 2025 approving the scheme of Amalgamation by the Board of Directors of the Transferor Company 2.

(3) Vintage Coffee and Beverages Limited (Transferee Company) was incorporated as a Private Limited Company under the name and style of "Spaceage Products Private Limited" in New Delhi on 25.04.1980, under the provisions of Companies Act, 1956. Thereafter, the Company has changed its name from Spaceage Products Private Limited to Spaceage Products Limited on 21.07.1981. Subsequently, name of the Company was changed to Vintage Coffee and Beverages Limited on 15.07.2021. The Present Corporate Identity Number (CIN) of the Company is **L15100TG1980PLC161210** and the PAN of the Company is **AAACS1324A** (Hereinafter referred to as the "Transferee Company").

The equity shares of the Transferee Company are listed and traded on the BSE Limited (BSE Security Code: 538920) and National Stock Exchange of India Limited (NSE Scrip Code: VINCOFE)

The Registered Office of the Transferee Company is situated at 202, Oxford Plaza, 9-1-129/1, SD Road, Hyderabad, Secunderabad-500003, Telangana, India.

The Registered Office was originally located at the State of Delhi and then was shifted to the State of Maharashtra on 19.05.2015. Further, the Registered office was later shifted to the State of Telangana on 15.02.2022.

The present main objects of the Transferee Company are as follows:

1. To carry on the business of process, produce, mix, pack, preserve, freeze, extract, refine, manufacture, import, export, buy, sell, trade and deal in processed foods, health foods, protein foods, food products, agro foods, fast foods, packed foods, poultry products, sea foods, milk foods, health and diet drinks, extruded foods, frozen foods, dehydrated foods, precooked foods. canned foods, preserved foods, bakery products and confectionery items.

2. such as breads, biscuits, sweets, cakes, pastries, cookies, wafers, condoles, lemon drops, chocolate. toffees, tinned Fruits, tea and coffee, vegetables, fruits and fruits juice, jams, jelly, pickles, squashes, sausages, nutrient, health and diet foods / drinks, extruded foods, confectionery items, sweets, cereals products and any other food products in and outside India.

3. To carry on the business of processing, farming, manufacturing, distributorship, agency, broker, factors, stockiest, importer and otherwise deal in all kinds of

organic and inorganic foods products and drinking products, mineral water, soft drinks, aerated mineral water, fruit drinks, artificial flavored drinks, condensed milk and drinking products of all kinds and other consumable provision of every description for human consumption.

4. To import and export all kinds and types of food products and drinks.

The authorized, issued, subscribed and paid-up capital of the Vintage Coffee and Beverages Limited (Transferee Company) as on 31.03.2025 is as follows:

Share Capital	**Amount in Rs.**
Authorised Capital	
13,50,00,000 equity shares of Rs. 10/- each	1,35,00,00,000
Total	**1,35,00,00,000**
Issued, Subscribed and Paid up Capital	
12,56,83,409 equity shares of Rs. 10/- each	1,25,68,34,090
Total	1,25,68,34,090

There has been no change in the authorized share capital of the company subsequent to 31.03.2025 and till the date of resolution on 7th May 2025 approving the scheme of Amalgamation by the Board of Directors of the Transferee Company. Subsequent to 31.03.2025, and till the date of resolution on 7th May 2025 approving the scheme of Amalgamation by the Board of Directors of the Transferee Company the Issued, Subscribed and Paid up Capital of the Transferee Company is Rs. 1,27,28,34,090/-

The Pre-Merger Shareholding Pattern of the Transferee Company as on 31.03.2025 is as follows:

S. No	**Category of shareholder**	**No. of shareholders**	**No. of fully paid up equity shares held**	**% of shareholding**
A.	**Promoter**	**10**		
1.	Mr. Balakrishna Tati	1	1,97,69,586	15.73
2.	Mr. Vishal Jethalia	1	33,09,556	2.63
3.	Mr. Mohit Rathi	1	30,93,101	2.46
4.	Ms. Padma Rathi	1	18,17,646	1.45
5.	Ms. Tati Sruti	1	7,34,241	0.58
6.	Mr. Tati Sai Teja	1	3,77,025	0.30
7.	Mr. Venkateshwarlu Tati	1	85,607	0.07

8.	Ms. Tati Thulasi Dalaxi	1	84,000	0.07
9.	Valbe Foods (India) Private Limited	1	6,11,711	0.49
10.	Chin Corp Holding PTE Limited	1	1,93,47,055	15.39
	Total promoter (A)	**10**	**4,92,29,528**	**39.17**
B.	**Public**	**19,352**	**7,64,53,881**	**60.83**
	Grand Total (A+B)	**19,362**	**12,56,83,409**	**100.00**

The Pre-merger shareholding Pattern of the Transferee Company as on 7th May 2025 is as follows:

S. No	**Category of shareholder**	**No. of shareholders**	**No. of fully paid up equity shares held**	**% of shareholding**
A.	**Promoter**	**10**		
1.	Mr. Balakrishna Tati	1	1,97,69,586	15.53
2.	Mr. Vishal Jethalia	1	33,09,556	2.60
3.	Mr. Mohit Rathi	1	30,93,101	2.43
4.	Ms. Padma Rathi	1	18,17,646	1.43
5.	Ms. Tati Sruti	1	7,34,241	0.58
6.	Mr. Tati Sai Teja	1	3,77,025	0.30
7.	Mr. Venkateshwarlu Tati	1	85,607	0.07
8.	Ms. Tati Thulasi Dalaxi	1	84,000	0.07
9.	Valbe Foods (India) Private Limited	1	6,11,711	0.48
10.	Chin Corp Holding PTE Limited	1	1,93,47,055	15.20
	Total promoter (A)	**10**	**4,92,29,528**	**38.68**
B.	**Public**	**21,349**	**7,80,53,881**	**61.32**
	Grand Total (A+B)	**21,359**	**12,72,83,409**	**100.00**

There has been no change in the capital structure of the Company subsequent to 31.03.2025 and till the date of resolution on 7th May 2025 approving the scheme of Amalgamation by the Board of Directors of the Transferee Company.

Vintage Coffee Private Limited (Transferor Company 1) and Delecto Foods Private Limited (Transferor Company 2) are the Wholly owned subsidiaries of the Vintage Coffee and Beverages Limited (Transferee Company).

The Memorandum of Association of the Transferee Company (relating to the authorised share capital) shall, without any further act, instrument or deed, be and stand altered, modified and amended, pursuant to Section 13, 14, 61 and 232 (3) (i), respectively of the Companies Act, 2013 and/or any other applicable provisions of the Act, as the case may be.

Further, in the event of any increase in the Authorised share capital of the Transferor Companies and/or the Transferee Company before the Effective Date, on sanctioning of any other Scheme by the competent authorities or otherwise increased independently by the respective Companies, such increase shall be given effect to while aggregating the Authorised share capital of the Transferee Company and the clauses provided herein under shall stand modified to that extent such that the such increase shall be taken in account while aggregating the Authorised Share Capital under the present Scheme.

The Post- Merger Authorized, Issued, Subscribed and Paid-up capital of Vintage Coffee and Beverages Limited (Transferee Company) will be as follows:

Share Capital	**Amount in Rs.**
Authorized Capital	
18,25,00,000 equity shares of Rs. 10/- each	1,82,50,00,000
Total	**1, 82,50,00,000**
Issued, Subscribed and Paid up Capital	
12,72,83,409 equity shares of Rs. 10/- each	1,27,28,34,090
Total	**1,27,28,34,090**

Post-merger, there is no change in the Issued, Subscribed and Paid up Capital of the Transferee Company as no new shares are issued pursuant to the merger.

C. RATIONALE, OBJECTIVE & PURPOSE OF THE SCHEME

a) The Scheme is presented under sections 230 – 232 of the Companies Act, 2013 and it provides for amalgamation of Transferor Company 1 and Transferor Company 2 into Transferee Company, resulting in consolidation of business in one entity and thereby strengthening the position of the amalgamated entity by enabling it to harness and optimize the synergies of equipments, land, money and human resources, which is in the best interest of both the Companies and their respective shareholders. The Transferor Company 1 and Transferor Company 2 are wholly owned subsidiaries of the Transferee Company.

b) The proposed amalgamation will reduce administrative costs and also result in reduction of overheads and other expenses, reduction in administrative and procedural

work, enable the amalgamated company to effect internal economies and optimize profitability as also to reduce administrative inefficiencies by reducing duplication of functions.

c) The proposed scheme of amalgamation is with a view to: -

- Simplify the corporate structure
- Integrate the operations
- Achieve operational and management efficiency.

d) Since, Vintage Coffee Private Limited (Transferor Company 1), Delecto Foods Private Limited (Transferor Company 2) and Vintage Coffee and Beverages Limited (Transferee Company) are pursuing same and similar business, the amalgamation would prove highly advantageous in achieving economies of scale and cost reduction.

e) In order to achieve the objectives as mentioned in clause (a) to (d) above, the Boards of Directors of the Transferor Companies and the Transferee Company have proposed to consolidate the Transferor Companies and the Transferee Company into a Single Company by conveniently combining and amalgamating the businesses carried on by above-mentioned Companies.

f) The Scheme shall be beneficial and in the best interests of the shareholders, creditors (if any) and employees of the Transferor Companies, the Transferee Company and to the interest of public at large and all concerned.

D. SCOPE OF THE SCHEME

The Scheme of Amalgamation provides for:

(1) Amalgamation of Transferor Companies with the Transferee Company.

(2) Various other matters consequential to or otherwise integrally connected with the above in the manner provided for in the Scheme.

(3) This Scheme of Amalgamation has been drawn up to comply with the conditions as specified under section 2(1B) of Income Tax Act, 1961, such that:

a) All the properties/assets of Transferor Companies, immediately before the amalgamation, become the properties of Transferee Company by virtue of amalgamation.

b) All the liabilities of Transferor Companies, immediately before the amalgamation, become the liabilities of Transferee Company by virtue of amalgamation.

E. PARTS OF THE SCHEME:

This Scheme of Amalgamation is explained by dividing it into the following parts:

PART A : Deals with Definitions, Effective and Operative Dates.

PART B : Deals with the Amalgamation of Transferor Company 1 and Transferor Company 2 with Transferee Company.

PART C : Deals with General Terms and Conditions

PART-A

DEFINITIONS, EFFECTIVE AND OPERATIVE DATES

1. DEFINITIONS

1.1 "Act" or "the Act" means the Companies Act, 2013 and every modification or re-enactment thereof and references to sections of the Act shall be deemed to mean and include reference to sections enacted in modification or replacement thereof.

1.2 "Applicable Law(s)" means any statute, notification, bye-laws, rules, regulations, guidelines, or common law, policy, code, directives, ordinance, schemes, notices, orders or instructions enacted or issued or sanctioned by any Appropriate Authority including any modification or re-enactment thereof for the time being in force.

1.3 "Amalgamating Undertaking" shall mean:

a) All the assets and properties of the Transferor Companies as on the Appointed Date.

b) All the secured and unsecured debts, liabilities, whether short term or long term contingent liabilities or duties and obligations of the Transferor Companies, if any, as on the Appointed Date.

c) Without prejudice to the generality of sub clause (a) above, the Undertaking of the Transferor Companies shall include all the assets and properties, whether movable or immovable, real or personal, in possession or reversion, corporeal or incorporeal, tangible or intangible, present or contingent and including but not limited to land

and building, all fixed and movable plant and machinery, vehicles, fixed assets, capital work in progress, current assets, investments, reserves, provisions, funds, licenses, franchises, registrations, certificates, permissions, consents, approvals, concessions (including but not limited to sales tax concessions, GST, excise duty, services tax or customs, value added tax and other incentives of any nature whatsoever), remissions, remedies, subsidies, guarantees, bonds, copyrights, patents, trade names, trademarks, track record, good-will and other rights and licenses in respect thereof, applications for copyrights, patents, trade names, trademarks, leases, leave and license agreements, software licenses, software agreements, service level agreements, tenancy rights, premises, ownership flats, hire purchase, lending arrangements, benefits of security arrangements, computers, insurance policies, office equipment, telephones, telexes, facsimile connections, communication facilities, website designing equipment's, software development equipment's and installations and utilities, electricity, water and other service connections, contracts and arrangements, powers, authorities, permits, allotments, privileges, liberties, advantages, easements and all the right, title, interest, goodwill, benefit and advantage, deposits, reserves, preliminary expenses, benefit of deferred revenue expenditure, provisions, advances, receivables, deposits, cash, bank balances, accounts and all other rights, benefits of all agreements, subsidies, grants, incentives, tax credits, whether granted by state government or central government or any such other authority, (including but not limited to credits in respect of income-tax, tax on book profits, value added tax, sales tax, service tax, etc.), and other claims and powers, all books of accounts, documents and records of whatsoever nature and where so ever situated belonging to or in the possession of or granted in favour of or enjoyed by the Transferor Companies, as on the Appointed Date.

d) All statutory licenses, registrations including those issued by Income Tax Department, Goods and Service Tax, Ministry of Corporate Affairs, inspector of Factories, all other statutory licenses issued by various departments, Ministry of Commerce and Industry (Additional Director General of Foreign Trade), T.S. Pollution Control Board, franchises, approvals, permissions, no-objection certificates, permits, consents, patents, trademarks, tenancies, offices, depots, quotas, rights, entitlements, privileges, benefits of all contracts / agreements / leases (including, but not limited to, contracts / agreements with vendors,

customers, government etc.), all other rights (including, but not limited to, right to use and avail electricity connections, water connections, environmental clearances, telephone connections, facsimile connections, telexes, e-mail, internet, leased line connections and installations, lease rights, easements, powers and facilities), of the Transferor Companies on the Appointed Date.

e) All staff, workmen and employees engaged in the Transferor Companies.

f) All records, files, papers, information, computer programs, software applications, manuals, data, catalogues, quotations, advertising materials, lists of present and former customers, pricing information and other records, whether in physical form or electronic form of the Transferor Companies.

1.4 **"Appointed date"** means **01.10.2025 (First day of October Two Thousand Twenty-Five)** or such other date as may be approved by the Hon'ble National Company Law Tribunal, Hyderabad Bench or such other competent authority having jurisdiction to sanction the Scheme.

1.5 **"Board of Directors" or "Board"** in relation to Transferor Companies and Transferee Company, as the case may be, shall, unless it is repugnant to the context or otherwise, includes any Committee of Directors or any person authorized by the Board of Directors or such Committee of Directors.

1.6 "**BSE"** shall mean BSE Limited.

1.7 **"Effective Date"** means the date on which the certified copies of the Order of the National Company Law Tribunal or any other Court or authority of appropriate jurisdiction sanctioning the Scheme are filed with the Registrar of Companies, Telangana at Hyderabad.

1.8 **"Listing Regulations**" means SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015 and shall include any statutory - modification, amendment, and re-enactment thereof for the time being in force or any act, regulations, rules, guidelines etc., that may replace such regulations;

1.9 **"NSE**" shall mean National Stock Exchange of India Limited

1.10 **"NCLT" means** Hon'ble National Company Law Tribunal, Hyderabad Bench

1.11 **"Registrar of Companies"** means the Registrar of Companies at Hyderabad for the State of Telangana.

1.12 **"Regional Director"** means the office of the Regional Director of the South East Region at Hyderabad.

1.13 **"SEBI"** means the Securities and Exchange Board of India;

1.14 **SEBI Master Circular"** shall mean the SEBI Circular dated June 20, 2023, bearing reference number SEBI/HO/CFD/POD-2/D/ CIR/2023193, as amended or replaced from time to time.

1.15 **"Stock Exchange**" means BSE Limited and National Stock Exchange of India Limited, where the equity shares of the Transferee Company are listed and traded.

1.16 **"Stock Exchange Approval**" means the no-objection/no-adverse observation letter(s) obtained by the Transferee Company from the Stock Exchange in relation to the Scheme pursuant to Regulation 37 of the Listing Regulations and the SEBI Circular. It is not applicable as the merger pertains to the merger of a wholly owned subsidiaries with the transferee company.

1.17 **"Scheme of Amalgamation" or "Scheme" or "the Scheme"** or **"this Scheme"** means this Scheme of Amalgamation in its present form or with any modifications, imposed or approved or directed by the Board of Directors of Transferee Company and/ or Transferor Company 1, Transferor Company 2 or by the members or creditors of the Companies involved and /or by the Regional Director, Registrar of Companies or by the Official Liquidator or by any other appropriate authority.

1.18 **"Shareholders"** means respectively the persons registered as holders of Equity Shares of the Company concerned.

1.19 **"Transferee Company"** means M/s. Vintage Coffee and Beverages Limited, a Company incorporated under the provisions of Companies Act, 1956, bearing Corporate Identity Number (CIN) L15100TG1980PLC161210 and having its registered office situated at 202, Oxford Plaza, 9-1-129/1, SD Road, Hyderabad, Secunderabad-500003, Telangana, India.

1.20 **"Transferor Company 1"** means M/s. Vintage Coffee Private Limited, a Company incorporated under the provisions of Companies Act, 2013, bearing Corporate Identity Number (CIN) U15500TG2015PTC098937 and having its registered office situated at 202, Oxford Plaza, No.9-1-129/1, S.D. Road, Hyderabad, Secunderabad-500003, Telangana, India.

1.21 **"Transferor Company 2"** means M/s. Delecto Foods Private Limited, a Company incorporated under the provisions of Companies Act, 1956, bearing Corporate Identity Number (CIN) U15400TG2012PTC082813 and having its registered office situated at 202, Oxford Plaza, No.9-1-129/1, S.D. Road, Hyderabad, Secunderabad-500003, Telangana, India.

1.22 **"Transferor Companies**" means. M/s. Vintage Coffee Private Limited (Transferor Company 1) and M/s. Delecto Foods Private Limited (Transferor Company 2).

1.23 **Valuation Report** of M/s. Vintage Coffee Private Limited (Transferor Company 1) and M/s. Delecto Foods Private Limited (Transferor Company 2) is not called for since the Transferor company is a Wholly Owned Subsidiary of M/s. Vintage Coffee and Beverages Limited (Transferee Company) as there is no issue and allotment of further shares.

All terms and words not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribed to them under the Act, the Income-tax Act, 1961 or any other applicable laws, rules, regulations, bye laws, as the case may be, including any statutory modification or re-enactment thereof from time to time.

2. THE SCHEME IS APPROVED BY HON'BLE NCLT AND OPERATIVE DATE

The Scheme set out herein in its present form is subject to any modification(s) approved or imposed or directed by the Board of Directors of Transferee Company and / or Transferor Companies or by the members or creditors of the Companies involved and /or by the Regional Director, Registrar of Companies or by the Official Liquidator or by the Hon'ble NCLT or by any other appropriate authority, unless otherwise specified in the Scheme, shall be operative from the Appointed Date and not at a date subsequent to appointed date. Upon the Scheme being approved by the Hon'ble NCLT and filed with the Registrar of Companies, the scheme shall be effective from the Appointed date.

3. DATE OF TAKING EFFECT AND OPERATIVE DATE

The Scheme set out herein in its present form or with any modification(s) approved or imposed or directed by the Hon'ble NCLTs' in terms of this Scheme, shall be effective from the Appointed Date, but shall be operative from the Effective Date.

PART-B

AMALGAMATION OF TRANSFEROR COMPANIES AND TRANSFEREE COMPANY

SECTION 1: TRANSFER & VESTING OF AMALGAMATING UNDERTAKING

4. Transfer of assets, properties, estates, claims, refunds, debts, duties, liabilities, obligations etc.,

4.1 Subject to the provisions of this Scheme as specified herein and with effect from the appointed date, the entire amalgamating undertaking of the Transferor Companies shall be transferred to and vested in or be deemed to be transferred to and vested in the Transferee Company in the following manner:

a) The Amalgamating Undertaking of the Transferor Companies comprising of its business, all assets and liabilities of whatsoever nature and where-so-ever situated, shall, under the provisions of Sections 230 and 232 of the Companies Act, 2013 and all other applicable provisions, if any, of the Act, without any further act or deed (save as provided in sub clauses (b) (c) and (d) below) be transferred to and vested in and/or be deemed to be transferred to and vested in the Transferee Company as a going concern so as to become the Undertaking of the Transferee Company and to vest in the Transferee Company all the rights, title, interest or obligations of the Transferor Companies therein.

b) All the Immovable properties of the Transferor Companies shall under the provisions of Sections 230 and 232 of the Companies Act, 2013, without any further act or deed, be transferred to or be deemed to be transferred to the Transferee Company so as to become as from the Appointed Date the Properties of the Transferee Company.

c) All the movable assets including but not limited to computers and equipment, office equipment, machineries, software's, products, websites, portals, capital work in progress, cash in hand of the Transferor Companies capable of passing by manual delivery or by endorsement and delivery, shall be so delivered or endorsed and delivered, as the case may be, to the Transferee Company.

d) In respect of movables other than those specified in sub clause (c) above, including, outstanding loans and advances, Investments (whether current or non - current), trade receivables, recoverable in cash or in kind or for value to be received, bank balances and deposits, if any, with government, semi-government, local and other authorities and bodies, customers and other persons, the same shall, without any further act, instrument or deed, be transferred to and stand vested in and for be

deemed to be transferred to and stand vested in the Transferee Company under the provisions of Sections 230 and 232 of the Companies Act, 2013.

e) In relation to all licenses, franchises, permissions, approvals, consents, entitlements, sanctions, permits, rights, privileges and licenses including rights arising from contracts, deeds, license instruments and agreements, if any, belonging to the Transferor Companies, which require separate documents of transfer including documents for attornment or endorsement, as the case may be, the Transferee Company will execute the necessary documents of transfer including documents for attornment or endorsement, as the case maybe, as and when required.

f) All secured and/or unsecured debts, if any, all liabilities, duties and obligations of every kind, nature, description, whether or not provided for in the books of account and whether disclosed or undisclosed in the balance sheet of the Transferor Companies shall also, under the provisions of Sections 230-232 of the Companies Act, 2013, without any further act or deed, be transferred to or be deemed to be transferred to the Transferee Company so as to become as from the Appointed Date the debts, liabilities, duties and obligations of the Transferee Company and it shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or restructuring by virtue of which such secured and/or unsecured debts, liabilities, duties and obligations have arisen, in order to give effect to the provisions of this sub clause.

It is clarified that unless otherwise determined by the Board of Directors of the Transferee Company, in so far as the borrowings/debts and assets comprising the Transferor Companies are concerned:

i. the security or charge, if any existing or created in future before the scheme is approved by Hon'ble NCLT, for the loans or borrowings of the Transferor Company shall, without any further act or deed continue to relate to the said assets after the scheme is approved by the Hon'ble NCLT and

ii. the assets of the Transferee Company shall not relate to or be available as security in relation to the said borrowings of the Transferor Company 1 and Transferor Company 2;

g) In so far as the various incentives, subsidies, special status and other benefits or privileges enjoyed (including credit on account of tax on book profits, sales tax, excise duty, custom duty, service tax, value added tax and other incentives),

granted by any government body, local authority or by any other person and availed by the Transferor Companies, the same shall vest with and be available to the Transferee Company on the same terms and conditions.

h) The Transferee Company shall under the provisions of the Scheme be deemed to be authorized to execute any such writings on behalf of the Transferor Companies, to implement and carry out all formalities and compliances, if required, referred to above.

i) All the properties or assets of the Transferor Companies whether movable or immovable, being transferred pursuant to this Scheme, which are registered and standing in the name of Transferor Companies shall, upon the scheme becoming effective, be registered in the name of the Transferee Company and the name of the Transferor Companies shall be substituted with the name of the Transferee Company in all such certificates of registration, endorsements, records and in revenue/mutation records in case of immovable properties by such appropriate authorities.

j) Any tax liabilities under the Income-tax Act, 1961, service tax laws/GST, customs law or other applicable laws/ regulations dealing with taxes/ duties / levies of the Transferor Companies to the extent not provided for or covered by tax provision in the accounts made as on the date immediately preceding the Appointed Date, if any, shall be transferred to Transferee Company.

k) Any refund under the Income-tax Act, 1961, service tax laws/GST or other applicable laws / regulations dealing with taxes/ duties / levies tax due to Transferor Companies consequent to the assessment made on Transferor Companies and for which no credit is taken in the accounts as on the date immediately preceding the Appointed Date shall also belong to and be received by the Transferee Company.

l) On or after the scheme is approved by Hon'ble NCLT, all rights, entitlements and powers to revise returns and filings of the Transferor Companies under the Income-tax Act, 1961, service tax laws/GST and other laws, and to claim refunds and / or credits for taxes paid, etc. and for matters incidental thereto, shall be available to, and vest with the Transferee Company.

m) All tax assessment proceedings / appeals of whatsoever nature by or against the Transferor Companies pending and/or arising at the Appointed Date and

relating to the Transferor Companies shall be continued and / or enforced until the scheme is approved by Hon'ble NCLT against the Transferor Companies and from the scheme is approved by Hon'ble NCLT, the same shall be continued and enforced by or against the Transferee Company in the same manner and to the same extent as would or might have been continued and enforced by or against the Transferor Companies.

Further, the aforementioned proceedings shall not abate or be discontinued nor be in any way prejudicially affected by reason of the amalgamation of the Transferor Companies into the Transferee Company or anything contained in the Scheme.

n) All the tax payments (including, without limitation payments under the Income-Tax Act, 1961 Service Tax law, GST and other laws) whether by way of deduction at source, advance tax or otherwise howsoever, by the Transferor Companies in respect of the profits or activities or operation of the business after the Appointed Date, the same shall be deemed to be the corresponding item paid by the Transferee Company and shall, in all proceedings, be dealt with accordingly. Further, any tax deducted at source by Transferor Companies on transactions with the Transferee Company, if any (from Appointed Date till the scheme is approved by Hon'ble NCLT) shall be deemed to be advance taxes paid by the Transferee Company and shall, in all proceedings be dealt with accordingly.

o) Obligation for deduction of tax at source on any payment made by or to be made by the Transferor Companies under the Income-tax Act, 1961, service tax laws, or other applicable laws / regulations dealing with taxes/ duties / levies shall be made or deemed to have been made and duly complied with by the Transferee Company.

p) This Scheme has been drawn up to comply with the conditions relating to "Amalgamation" as specified under Section 2(1B) of the Income-tax Act, 1961. If any terms or provisions of the Scheme are found or interpreted to be inconsistent with the provisions of the said Section at a later date including resulting from a retrospective amendment of law or for any other reason whatsoever, till the time the Scheme becomes effective, the provisions of the said section of the Income-Tax Act, 1961, shall prevail and the Scheme shall stand modified to the extent determined necessary to comply with Section 2(1B) of the Income-tax Act, 1961.

5. Legal, taxation and other proceedings:

5.1 Upon the coming into effect of this Scheme, all legal, administrative, taxation or other proceedings, whether civil or criminal (including before any statutory or quasi-judicial authority or tribunal or courts), by or against the Transferor Companies, under any statute, pending on the Appointed Date, shall be continued and enforced by or against the Transferee Company as effectually and in the same manner and to the same extent as if the same had been instituted by or against, as the case may be, the Transferee Company.

5.2 The Transferee Company shall have all legal, taxation or other proceedings initiated by or against the Transferor Companies referred to in Clause 5.1 above transferred to its name as soon as is reasonably possible after the Appointed Date and to have the same continued, prosecuted and enforced by or against the Transferee Company, as a successor of the Transferor Companies.

6. Contracts, deeds and other instruments

6.1 Subject to the other provisions of this Scheme, all contracts, deeds, bonds, agreements, leave and license agreements, licenses, engagements, certificates, benefits, privileges, entitlements, grants, sanctions, permissions, consents, approvals, concessions, any schemes under which the Transferor Companies are registered with the government or any other authorities and incentives (including but not limited to benefits under the Income-Tax Act, 1961, service tax, GST and other laws), remissions, remedies, subsidies, guarantees, licenses and other instruments, if any, of whatsoever nature to which the Transferor Companies is a party and which have not lapsed and are subsisting or having effect on the scheme is approved by Hon'ble NCLT shall be in full force, and be effective against or in favour of the Transferee Company, as the case may be, and may be enforced by or against the Transferee Company as fully and effectually as if, instead of the Transferor Companies, the Transferee Company had been a party thereto. The Transferee Company may enter into and/or issue and/or execute deeds, writings or confirmations or enter into any tripartite restructurings, confirmations or novation's, to which the Transferor Companies will, if necessary, also be a party in order to give formal effect to the provisions of this Scheme, if so required or if so considered necessary. The Transferee Company shall be deemed to be authorised to execute any such deeds, writings or confirmations on behalf of the Transferor Companies and to implement or carry out all formalities required on the part of the Transferor Companies to give effect to the provisions of this Scheme.

7. CONDUCT

During the period between the approval of the Scheme by the Board of the Transferor Companies and the Board of the Transferee Company and the Effective Date, the business of the Transferor Companies shall be carried out with diligence and business prudence in the ordinary course consistent with past practice in good faith and in accordance with Applicable Law.

8. SAVING OF CONCLUDED TRANSACTIONS

The transfer of Amalgamating Undertaking under clause 3 above and the continuation of proceedings by or against the Transferee Company under clause 4 above and the effectiveness of the contracts and deeds under clause 5 shall not affect any transactions and proceedings or contracts or deeds already concluded by the Transferor Companies on or before the Appointed Date and after the Appointed Date till the scheme is approved by Hon'ble NCLT, to the end and intent that the Transferee Company accepts and adopts all such acts, deeds and things done and executed by the Transferor Companies in respect thereto as done and executed on behalf of itself.

9. Tax Credits

Upon the scheme becoming effective:

9.1 To the extent required, the Transferor Companies and the Transferee Company shall be permitted to revise and file their respective income tax returns, withholding tax returns (including Tax deducted at source certificates), sales tax, value added tax, service tax, central sales tax, entry tax, goods and services tax returns and any other tax rectums: and

9.2 The Transferee Company shall be entitled to: (a) claim deduction with respect to items such as provisions, expenses, etc. disallowed in earlier years in the hands of the Transferor Companies, which may be allowable in accordance with the provisions of the IT Act on or after the Appointed Date: and (b) exclude items such as provisions, reversals, etc. for which no deduction or Tax benefit has been claimed by the Transferor Companies prior to the Appointed Date.

9.3 Upon the Scheme becoming effective, notwithstanding anything to the contrary contained in the provisions of this Scheme, unabsorbed Tax depreciation, minimum alternate tax credit, if any, of the Transferor Companies as on the Effective Date, shall, for all purposes, be treated as unabsorbed Tax depreciation, minimum alternate tax credit of the Transferee Company. It is further clarified that any unabsorbed depreciation of the Transferor Companies as specified in their respective books of

accounts shall be included as unabsorbed depreciation of the Transferee Company for the purposes of computation of minimum alternate tax.

9.4 Upon the Scheme becoming effective, the Transferee Company shall be entitled to claim refunds (including refunds or claims pending with the Tax authorities) or credits, with respect to Taxes paid by, for, or on behalf of, the Transferor Companies under Applicable Law (including Tax laws).

9.5 With effect from the Appointed Date and upon sanction of the Scheme by the Tribunal, all taxes, duties, cess payable/receivable by Transferor Companies including all or any refunds/credit/claims relating thereto shall be treated as the asset/liability or refunds/credit/claims, as the case may be, of Transferee Company.

9.6 Upon the Scheme becoming effective, all unavailed credits and exemptions and other statutory benefits, including in respect of income Tax, CENVAT, customs, value added Tax, sales Tax, service tax, entry Tax and goods and service Tax to which the Transferor Companies is entitled shall be available to and vest in the Transferee Company, without any further act or deed.

9.7 Any tax liability under the IT Act, or any other applicable Tax laws or regulations allocable to the Transferor Companies whether or not provided for or covered by any Tax provisions in the accounts of the Transferor Companies made as on the date immediately preceding the Effective Date, shall be transferred to the Transferee Company. Any surplus in the provision for Taxation or duties or levies in the accounts of the Transferor Companies, including advance Tax and Tax deducted at source as on the close of business in India on the date immediately preceding the Effective Date will also be transferred to the account of the Transferee Company.

9.8 All Tax assessment proceedings and appeals of whatsoever nature by or against the Transferor Companies, pending or arising as at the Effective Date, shall be continued and/or enforced by or against the Transferee Company in the same manner and to the same extent as would or might have been continued and enforced by or against the Transferor Companies. Further, the aforementioned proceedings shall neither abate or be discontinued nor be in any way prejudicially affected by reason of the amalgamation of the Transferor Companies with the Transferee Company or anything contained in this Scheme.

9.9 Any refund under the IT Act or any other Tax laws related to or due to the Transferor Companies, including those for which no credit is taken as on the date immediately preceding the Effective Date, shall also belong to and be received by the Transferee Company.

9.10 Without prejudice to the generality of the above, all benefits, incentives, claims, losses, credits (including income Tax, service Tax, excise duty, goods and service Tax and applicable state value added Tax) to which the Transferor Companies are entitled to in terms of applicable Tax laws, shall be available to and vest in the Transferee Company from the Effective Date.

9.11 All the expenses incurred by the Transferor Companies and the Transferee Company in relation to the amalgamation of the Transferor Companies with the Transferee Company in accordance with this Scheme, including stamp duty expenses, if any, shall be allowed if any as deduction to the Transferee Company in accordance with section 35DD of the IT Act over a period of five (5) years beginning with the financial year in which this Scheme becomes effective.

10. BORROWING LIMITS; CORPORATE APPROVALS

10.1 Upon the coming into effect of this Scheme and with effect from the Appointed Date, the borrowing and investment limits of the Transferee Company under the Act shall be deemed, without any further act or deed, to have been enhanced by the borrowing and investment limits of the Transferor Companies, such limits being incremental to the existing limits of the Transferee Company.

10.2 Any corporate approvals obtained by the Transferor Companies, whether for purposes of compliance or otherwise, shall stand transferred to the Transferee Company and such corporate approvals and compliance shall be deemed to have been obtained and complied with by the Transferee Company.

11. Staff, workmen and employees

11.1 On the Scheme coming into effect, all staff, workmen and employees of the Transferor Companies, if any, in service on the scheme is approved by Hon'ble NCLT shall be deemed to have become staff, workmen and employees of the Transferee Company with effect from the scheme is approved by Hon'ble NCLT without any break in their service and the terms and conditions of their employment with the Transferee Company shall not be less favourable than those applicable to them with reference to the Transferor Companies on the scheme is approved by Hon'ble NCLT.

11.2 It is expressly provided that, in so far as the Gratuity Fund, Provident Fund, Superannuation Fund, if applicable, Employee's State Insurance Corporation Contribution, Labour Welfare Fund or any other Fund created or existing for the benefit of the staff, workmen and employees of the Transferor Companies is

concerned, upon the Scheme coming into effect, the Transferee Company shall stand substituted for the Transferor Companies for all purposes whatsoever in relation to the administration or operation of such Fund or Funds or in relation to the obligation to make contributions to the said Fund or Funds in accordance with the provisions thereof as per the terms provided in the Trust Deeds, if any, to the end and intent that all rights, duties, powers and obligations of the Transferor Companies in relation to such fund or funds shall become those of the Transferee Company and all the rights, duties and benefits of the employees of the Transferor Companies under such Funds and Trusts shall be protected, subject to the provisions of law for the time being in force. It is clarified that the services of the staff, workmen and employees of Transferor Companies will be treated as having been continuous and not interrupted for the purpose of the said Fund or Funds.

11.3 In so far as the Provident Fund, Gratuity Fund, Superannuation Fund, if applicable, or other Special Scheme(s) Fund(s) created or existing for the benefit of the employees of the Transferor Companies are concerned upon the coming into effect of this Scheme, balances lying in the accounts of the employees of Transferor Companies , in the said funds as on the Appointed Date shall stand transferred from the trusts / funds of the Transferor Companies to the corresponding trusts/funds set up by the Transferee Company.

12. Clubbing of authorized share capital of Transferor Companies with the authorized share capital of Transferee Company:

12.1 Upon this Scheme becoming effective, the authorized share capital of the Transferee Company shall automatically stand increased without any further act, instrument or deed on the part of the Transferee Company including payment of stamp duty and fees payable to Registrar of Companies, and the Authorised Capital of Rs. 1,35,00,00,000/- divided into 13,50,00,00 equity shares of Rs. 10/- each will stand increased to Rs. 1,82,50,00,000/- divided into 18,25,00,000 equity shares of Rs. 10/- each. Consequently, the authorized capital of the transferee company stands to Rs. 1,82,50,00,000/- divided into 18,25,00,000 equity shares of Rs. 10/- each.

12.2 For the purpose of sub clause 12.1 above, the stamp duties and fees paid on the authorized share capital of the Transferor Companies by the Transferor Companies shall be utilized and applied to the increased authorized share capital of the Transferee Company and there would be no requirement for any further payment of stamp duty and/or fee by the Transferee Company for clubbing the authorized share capital of the Transferor Companies to that extent.

12.3 Further, in the event of any increase in the authorised share capital of the Transferor Companies and/or the Transferee Company before the Effective Date, on sanctioning of any other Scheme by the competent authorities or otherwise increased independently by the respective Companies, such increase shall be given effect to while aggregating the authorised share capital of the Transferee Company and the clauses provided herein under shall stand modified to that extent such that the such increase shall be taken in account while aggregating the Authorised Share Capital under the present Scheme.

12.4 The Memorandum of Association of the Transferee Company (relating to the authorized share capital) shall, without any further act, instrument or deed, be and stand altered, modified and amended, and the consent of the shareholders to the Scheme shall be deemed to be sufficient for the purpose of effecting sub-clause 12.1. No further resolution(s) under Sections 13, 61, 64 of the Companies Act, 2013 and other applicable provisions of the Act would be required to be separately passed.

12.5 Upon the coming into effect of this Scheme, Clause V of the Memorandum of Association shall, without any further act, instrument or deed, be and stand altered, modified and amended pursuant to Sections 13, 61, 64 of the Companies Act, 2013 and other applicable provisions of the Act, as the case may be, in the manner set out below and be replaced by the following clause: -

"The Authorized Share Capital of the Company is Rs. 1,82,50,00,000/- (Rupees One Hundred and Eighty-two Crores Fifty Lakhs) divided into 18,25,00,000 (Eighteen Crores Twenty-five Lakhs) equity shares of Rs. 10/- (Rupees Ten) each."

SECTION 2: CONDUCTING BUSINESS FROM APPOINTED DATE TILL EFFECTIVE DATE

With effect from the Appointed Date up to and including the Effective date:

13.1 The Transferor Companies shall carry on and be deemed to have been carrying on all business activities and shall be deemed to have been held and stood possessed and shall hold and shall stand possessed of the assets so to be transferred for and on behalf of and on account of and in trust for the Transferee Company.

13.2 Any income or profit accruing or arising to the Transferor Companies and all costs, charges, expenses and losses or taxes incurred by the Transferor Companies shall for all purposes be treated as the income, profits, costs, charges, expenses and losses or taxes, as the case may be, of the Transferee Company and shall be available to the Transferee Company for being disposed off in any manner as it thinks fit.

13.3 All liabilities, debts, duties, obligations which arise or accrue on or after the Appointed Date shall be deemed to be the debts, liabilities, duties and obligations of the Transferee Company.

13.4 The Transferor Companies shall carry on its business with reasonable diligence and in the same manner as it had been doing hitherto and the Transferor Companies shall not alter or substantially expand its business except with the written concurrence of the Transferee Company.

13.5 It is clarified that the approval of the members of the Transferee Company to the Scheme shall be deemed to be their consent of approval also to the ancillary and incidental alterations, if any, to be carried out to the Memorandum of Association of the Company as may be required under the Act and there would be no further requirement of obtaining the members approval for such alterations arising pursuant to the sanctioned Scheme.

13.6 The Transferor Companies shall be entitled to acquire any other businesses or other assets and all such acquisitions shall be held for and on behalf of and on account of the Transferee Company. The Transferor Companies shall be entitled to sell, transfer or alienate any of its businesses / undertaking subject to obtaining written consent from the Board of Directors of the Transferee Company.

13.7 The Transferee Company shall also be entitled, pending sanction of the Scheme, to apply to the Central Government, State Government, and all other agencies, departments and statutory authorities concerned, wherever necessary, for such consents, approvals and sanctions, which the Transferee Company may require, including registrations, approvals, exemptions, reliefs etc., as may be required/granted under the statutes.

13.8 The Transferor Companies shall not make any change in their capital structure by issue of rights, shares, debentures, preference shares or otherwise, except with the consent of the Board of Directors of the Transferee Company.

13.9 The Transferor Companies shall not vary except in the ordinary course of business, the terms and conditions of employment of their employees without the consent of the Board of Directors of the Transferee Company.

13.10 The Board of Directors of the Transferor Companies shall pass necessary resolutions and take promptly necessary steps as may be required by the Board of Directors of the Transferee Company, to give effect to this Scheme.

13.11 For the purpose of giving effect to the vesting order passed under Sections 230 to 232 of the Act in respect of this Scheme by the NCLT, the Transferee Company shall, at any time pursuant to the orders on this Scheme, be entitled to get the record of the change in the legal right(s) upon the vesting of the Transferor Companies businesses and undertakings in accordance with the provisions of Sections 230 to 232 of the Act. The Transferee Company shall be authorized to execute any pleadings, applications, forms, etc. as are required to remove any difficulties and carry out any formalities or compliance as are necessary for the implementation of this Scheme.

SECTION 3: CANCELLATION OF SHARES / CONSIDERATION FOR AMALGAMATION

14.1 As Transferor Companies are wholly owned subsidiaries of the Transferee Company, the entire issued, subscribed and paid up share capital of Transferor Companies is held by the Transferee Company, through itself and its nominees. Upon this Scheme becoming effective, Transferee Company would not be required to issue and allot any shares to the shareholders of Transferor Companies. The entire paid up Capital held by the Transferee company in the capital of Transferor Companies will also stand cancelled upon the receipt of approval orders of the Hon'ble National Company Law Tribunal and the scheme becoming effective.

14.2 Upon the Scheme becoming effective, no shares of the Transferee Company shall be allotted in lieu or exchange of the holding of the wholly owned subsidiaries of the Transferee Company in the Transferor Companies and the stated capital/issued and paid-up capital of the Transferor Companies shall stand cancelled/extinguished on the Effective Date. The said cancellation of existing share capital of the Transferor Companies shall be affected as an integral part of this Scheme without any further act or deed or instrument by the Transferee Company.

14.3 Further, upon the Scheme becoming effective, all the equity shares of the Transferor Companies held by the Transferee Company shall stand cancelled and the investments of the Transferee Company as appearing on the Asset side of the Balance Sheet of the Transferee Company shall stand cancelled to the extent of book value of the equity shares of the Transferor Companies. The difference, if any, between the amount of share capital of the Transferor Companies and the investments in the share capital of the Transferor Companies as appearing in the books of accounts of the Transferee Company shall be adjusted in reserves of the Transferee Company.

SECTION 4: ACCOUNTING TREATMENT

15. Accounting Treatment in the Books of the Transferee Company

Upon this scheme becoming effective, the Transferee Company shall account for the amalgamation/merger in the books as on appointed date, as per "Pooling of interest".

15.1 In preparing the Transferee Company's financial statement all the assets, liabilities and reserves (whether capital or revenue or arising on revaluation) of the Transferor company 1 and Transferor Company 2 should be recorded at their existing book value as recorded in the Transferor Companies.

15.2 No adjustments are made to reflect fair values or recognise any new assets or liabilities. The only adjustments that are made are to harmonise accounting policies.

15.3 The balance of the retained earnings appearing in the financial statements of the Transferor Companies is aggregated with the corresponding balance appearing in the financial statements of the Transferee Company. Alternatively, it is transferred to General Reserve.

15.4 The identity of the reserves of the Transferor Companies shall be preserved and the Transferee Company shall record the reserves of the Transferor Companies in the same form and at the same values as they appear in financial statements of the Transferor Companies.

15.5 To the extent that there are inter-corporate loans and balances between the Transferor Companies and the Transferee Company, the obligation in respect thereof shall come to an end and corresponding effect shall be given in the books of account and the records of the Transferee Company for the cancellation / reduction / netting of any assets or liabilities, as the case may be. Difference, if any, arising upon such cancellation, shall be credited or debited, as the case may be, to the General Reserve of the Transferee Company. For the removal of doubts, it is hereby clarified that there would be no accrual of interest or other charges in respect of any such intercorporate loans and balances with effect from the Appointed Date.

15.6 The Investment by the Transferee Company in the paid-up equity share capital of the Transferor Companies, on the effective date, shall stand cancelled. The difference between the share capital of the Transferor Company and investment in the Transferor Companies, if any, recorded in the books of the Transferee Company shall be adjusted in the Capital Reserve of the Transferee Company and should be presented separately from other capital reserves, if any, with disclosure of its nature and purpose.

15.7 If at the time of the amalgamation, the Transferor Companies and the transferee companies have conflicting accounting policies, accounting policies of Transferee Company shall be adopted following the amalgamation to ensure that the Financial Statements reflect the financial Position on the basis of consistent accounting policies. The effects on the financial statements of any changes in accounting policies shall be reported.

16. Dissolution of the Transferor Companies

On the Scheme coming into effect, the Transferor Company 1, i.e. M/s. Vintage Coffee Private Limited, the Transferor Company 2, i.e. M/s. Delecto Foods Private Limited shall, without any further act or deed, stand dissolved without going through the process of winding up.

PART-C

GENERAL TERMS AND CONDITIONS

17. Impact of the Scheme on creditors

This Scheme of Amalgamation, if approved by the appropriate authorities, shall not have any adverse impact on the creditors whether secured or unsecured, of Transferee Company and / or Transferor Companies.

18.TAX RETURNS AND PAYMENTS

18.1 It is clarified that all the taxes paid by the Transferor Companies from the appointed date onwards including all or any refunds and claims, for all purposes, be treated as the tax liabilities or refunds and claims on the Transferee Company. Accordingly, upon the Scheme become effective, the Transferee Company is expressly permitted to revise its GST, other tax returns and to claim refunds/credits, pursuant to the provisions of this Scheme, if any.

18.2 In accordance with the GST Rules framed under the relevant Acts, as are prevalent on the effective date, the unutilized Credits relating to the GST, Duties paid on inputs /capital goods lying to the account of the Transferor Companies, if any, shall be permitted to be transferred to the Credit of the Transferee Company, as if all such unutilized credits were lying in the Account of the Transferee Company. The Transferee Company shall accordingly be entitled to set off all such unutilized credits against the GST payable by it.

18.3 Upon the Scheme coming into effect, all the taxes paid (including TDS) by the Transferor Companies from the appointed date, regardless of the period to which they

relate, shall be deemed to have been paid for and on behalf of and to the credit of the Transferee Company as effectively as if the Transferee Company had paid the same.

18.4 To the extent required, the Transferor Companies and the Transferee Company shall be permitted to revise and file their respective income tax returns, withholding tax returns (including Tax deducted at source certificates), sales tax, value added tax, service tax, central sales tax, entry tax, goods and services tax returns, customs duty and any other tax rectums: and

18.5 The Transferee Company shall be entitled to: (a) claim deduction with respect to items such as provisions, expenses, etc. disallowed in earlier years in the hands of the Transferor Companies, which may be allowable in accordance with the provisions of the IT Act on or after the Appointed Date: and (b) exclude items such as provisions, reversals, etc. for which no deduction or Tax benefit has been claimed by the Transferor Companies prior to the Appointed Date.

18.6 Upon the Scheme becoming effective, notwithstanding anything to the contrary contained in the provisions of this Scheme, unabsorbed Tax depreciation, minimum alternate tax credit, if any, of the Transferor Companies as on the Effective Date, shall, for all purposes, be treated as unabsorbed Tax depreciation, minimum alternate tax credit of the Transferee Company. It is further clarified that any unabsorbed depreciation of the Transferor Companies as specified in their respective books of accounts shall be included as unabsorbed depreciation of the Transferee Company for the purposes of computation of minimum alternate tax.

18.7 Upon the Scheme becoming effective, the Transferee Company shall be entitled to claim refunds (including refunds or claims pending with the Tax authorities) or credits, with respect to Taxes paid by, for, or on behalf of, the Transferor Companies under Applicable Law (including Tax laws).

18.8 Upon the Scheme becoming effective, all Taxes, cess, duties and liabilities (direct and indirect), payable by or on behalf of the Transferor Companies, shall, for all purposes, be treated as Taxes, cess, duties and liabilities, as the case may be, payable by the Transferee Company.

18.9 Upon the Scheme becoming effective, all unavailed credits and exemptions and other statutory benefits, including in respect of income Tax, CENVAT, customs, value added Tax, sales Tax, service tax, entry Tax and goods and service Tax to which the Transferor Companies is entitled shall be available to and vest in the Transferee Company, without any further act or deed.

18.10 Any tax liability under the IT Act, or any other applicable Tax laws or regulations allocable to the Transferor Companies whether or not provided for or covered by any Tax provisions in the accounts of the Transferor Companies made as on the date immediately preceding the Effective Date, shall be transferred to the Transferee Company. Any surplus in the provision for Taxation or duties or levies in the accounts of the Transferor Companies, including advance Tax and Tax deducted at source as on the close of business in India on the date immediately preceding the Effective Date will also be transferred to the account of the Transferee Company.

18.11 All Tax assessment proceedings and appeals of whatsoever nature by or against the Transferor Companies, pending or arising as at the Effective Date, shall be continued and/or enforced by or against the Transferee Company in the same manner and to the same extent as would or might have been continued and enforced by or against the Transferor Companies. Further, the aforementioned proceedings shall neither abate or be discontinued nor be in any way prejudicially affected by reason of the amalgamation of the Transferor Companies with the Transferee Company or anything contained in this Scheme.

18.12 Any refund under the IT Act or any other Tax laws related to or due to the Transferor Companies, including those for which no credit is taken as on the date immediately preceding the Effective Date, shall also belong to and be received by the Transferee Company.

18.13 Without prejudice to the generality of the above, all benefits, incentives, claims, losses, credits (including income Tax, service Tax, excise duty, goods and service Tax and applicable state value added Tax) to which the Transferor Companies are entitled to in terms of applicable Tax laws, shall be available to and vest in the Transferee Company from the Effective Date.

18.14 All the expenses incurred by the Transferor Companies and the Transferee Company in relation to the amalgamation of the Transferor Companies with the Transferee Company in accordance with this Scheme, including stamp duty expenses, if any, shall be allowed if any as deduction to the Transferee Company in accordance with section 35DD of the IT Act over a period of five (5) years beginning with the financial year in which this Scheme becomes effective.

19. DIVIDENDS

19.1 Nothing contained in this Scheme shall be construed as restricting or restraining any of the Companies from being entitled to declare and pay dividends, whether interim or Final, to their respective equity shareholders, whether during the pendency of the Scheme or otherwise.

19.2 The holders of the Shares of respective Companies shall, save as expressly provided otherwise in this Scheme, continue to enjoy their existing rights under the Articles of Association of the respective Companies concerned including the right to receive dividends.

19.3 It is clarified that the aforesaid provisions in respect of declaration of dividends are enabling provisions only and shall not be deemed to confer any right on any member of any Company to demand or claim any dividends which, subject to the provisions of the said Act, shall be entirely at the discretion of the Boards of Directors of the respective Companies and subject to the approval of the shareholders of the respective Companies.

20. FILING OF APPLICATIONS/PETITIONS WITH NCLT

The Transferee Company and the Transferor Companies shall, jointly or severally, with all reasonable diligence, make and file all necessary applications, affidavits, petitions etc., before Hon'ble NCLT for obtaining the sanction to this Scheme of Amalgamation under Sections 230 and 232 of the Companies Act, 2013 and each of them jointly/severally, shall apply for all necessary approvals as may be required under law seeking Orders for dispensing with/convening, holding and conducting of the Meetings of the respective classes of Members and/or Creditors of each of the Transferor Companies and Transferee Companies as may be directed by the Hon'ble NCLT. On the scheme being agreed to by the requisite majority of Classes of Members and/or Creditors of the Transferor Companies and Transferee Company, the Transferor Companies and Transferee Companies jointly/severally apply to the Hon'ble NCLT for sanctioning the scheme of Amalgamation under Sections 230 – 232 of the Act and for such other Order/Orders as the Hon'ble NCLT may deem feet.

21. MODIFICATION TO THE SCHEME

21.1 The Transferee Company and Transferor Companies by their respective Board of Directors or any Committee thereof or any Director authorized in that behalf (hereinafter referred to as the "Delegate") may assent to, or make, from time to time, any modifications or amendments or additions to this Scheme which the

Regional Director, Registrar of Companies or Official liquidator or Hon'ble Tribunal or any appropriate authority (ies) under law may deem fit to approve or impose and which Transferee Company and Transferor Companies may in their discretion accept or such modifications or amendments or additions as Transferee Company and Transferor Company 1 and Transferor Company 2 or as the case may be, their respective Delegate may deem fit, or required for the purpose of resolving any doubts or difficulties that may arise for carrying out this Scheme, and Transferee Company and Transferor Companies by their respective Boards of Directors or Delegates are hereby authorised to do, perform and execute all acts, deeds, matters and things necessary for bringing this Scheme into effect, or review the position relating to the satisfaction of the conditions of this Scheme and if necessary, waive any of such conditions (to the extent permissible under law) for bringing this Scheme into effect. In the event that any conditions may be imposed by any authorities, which Transferee Company and Transferor Companies find unacceptable for any reason, then Transferee Company and Transferor Companies shall be at liberty to withdraw the Scheme. The aforesaid powers of Transferee Company and Transferor Companies may be exercised by their respective Delegates.

21.2 For the purpose of giving effect to this Scheme or to any modifications or amendments thereof or additions thereto, the Delegates (acting jointly) of Transferee Company and Transferor Companies may give such directions as they may consider necessary to settle any question or difficulty arising under this Scheme or in regard to and of the meaning or interpretation of this Scheme or implementation thereof or in any matter whatsoever connected therewith (including any question or difficulty arising in connection with any deceased or insolvent shareholders of the respective Companies), or to review the position relating to the satisfaction of various conditions of this Scheme and if necessary, to waive any of those conditions (to the extent permissible under law).

22. SCHEME CONDITIONAL UPON

22.1 This Scheme is conditional upon and subject to:

a. it being agreed to by the respective requisite majorities of the members and various classes of creditors (if any) of the Transferor Companies and the Transferee Company as required under the Act or the holding of any such meetings in the Transferor Companies or Transferee Company is dispensed with by the Hon'ble NCLT and the required consent of Hon'ble NCLT, Hyderabad Bench being obtained.

b. the requisite sanctions and approvals, as may be required by law in respect of this Scheme being obtained; and

23. In the event of this Scheme failing to take effect before 31.12.2026 or such later date as may be agreed by the respective Boards of Directors of Transferee Company and Transferor Companies, this Scheme shall stand revoked, cancelled and be of no effect and become null and void and in that event no rights and liabilities whatsoever shall accrue to or be incurred inter-se by the Companies or their shareholders or creditors or employees or any other person. In such case, both the Companies shall bear its own costs, charges and expenses or shall bear costs, charges and expenses as may be mutually agreed.

24. VALIDITY OF EXISTING RESOLUTIONS, ETC. IN RESPECT OF THE PRIOR ACTS

Upon this Scheme becoming effective, the resolutions passed by the Transferor Companies, as are considered necessary by the Board of the Transferee Company and which are valid and subsisting on the date of this Scheme becoming effective, shall continue to be valid and subsisting in respect of the relative acts performed steps taken prior to the date of this Scheme becoming effective and be considered as resolutions of the Transferee Company and if any such resolutions have any monetary limits approved under the provisions of the Act, or any other applicable statutory provisions, then said limits as are considered necessary by the Board of the Transferee Company shall be added to the limits, if any, under like resolutions passed by the Transferee Company and shall constitute the aggregate of the said limits in the Transferee Company.

25. EFFECT OF NON-RECEIPT OF APPROVALS

In the event of any of the said sanctions and approvals referred to in clause 20 above not being obtained (unless otherwise decided by the Board of Directors) and / or the consent of the Hon'ble NCLT, Hyderabad Bench is not obtained, this Scheme shall stand revoked, cancelled and be of no effect, save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any rights and / or liabilities which might have arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as is specifically provided in the Scheme or as may otherwise arise in law.

26. COSTS, CHARGES, ETC.

All costs, charges, levies and expenses (including stamp duty) in relation to or in connection with or incidental to this Scheme or the implementation thereof shall be borne and paid by Transferee Company.

27. COMPLIANCE WITH SEBI REGULATIONS

Since the present Scheme solely provides for amalgamation of a wholly owned subsidiaries with its holding company, no formal approval, NoC or vetting is required from the Stock Exchange(s) or SEBI for the Scheme, in terms of the provisions of the SEBI Master Circular and any other applicable provisions, if any and the present Scheme is only required to be filed with the Stock Exchanges for the purpose of disclosure and dissemination on their websites.

SCHEDULE I

FIRST PART

Details of the Immovable and movable Properties of Vintage Coffee Private Limited (Transferor Company 1) being transferred to Transferee Company pursuant to the Scheme of Amalgamation.

(in Rs.)

Sl No	**Description of the Asset**	**Gross Block**	**Net Block**
1	Land & Civil Works	19,89,26,935	19,89,26,935
2	Buildings	16,77,52,140	13,39,94,740
3	Plant and Machinery	57,61,32,893	33,37,84,750
4	Lab Equipments	3,21,870	93,837
5	ETP and RO Plant	1,32,13,480	68,69,981
6	Electrical Equipment	3,37,48,165	1,15,90,355
7	Furniture & Fixtures	17,62,895	5,63,956
8	Computers	5,55,434	33,571
9	Vehicles	46,80,667	13,57,642
10	Software	4,45,410	-
Total		**99,75,39,890**	**68,72,15,768**

Details of the Immovable and movable Properties of Delecto Foods Private Limited (Transferor Company 2) being transferred to Transferee Company pursuant to the Scheme of Amalgamation.

(in Rs.)

Sl No	**Description of the Asset**	**Gross Block (Rs)**	**Net Block (RS)**
1	Land and Civil Works	36,88,950	36,88,950
2	Buildings	5,37,12,877	3,58,67,177
3	Plant & Machinery	6,63,36,201	2,66,69,271
4	Lab Equipment	3,77,176	7,436
5	ETP and RO Plant	1,53,57,200	92,26,077
6	Electrical Equipment	85,33,166	9,47,934
7	Furniture & Fixtures	63,91,063	27,69,356
8	Computers	4,00,032	47,215
9	Vehicles	8,19,985	
Sub Total		**15,56,16,650**	**7,92,23,416**